TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

July 16, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at https://www.occourts.org/media-relations.aci.html. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
2	***25-01477343*** ***Alphapet, Inc. vs. Wagner***	**Motion to Strike - Anti SLAPP** The Anti-SLAPP Motion to Strike Portions of Second Amended Complaint (SAC) by Defendants Kutak Rock LLP; Brian J. Wagner and Amir Farahani is GRANTED in part. Defendants' request for judicial notice is granted as to the existence of court records, although the Court does not assume the truth of matters stated in court filings. Defendants move to strike portions of the SAC, including paragraphs 15, 18, 19, 20, 21, 23, 27, 28, 32, and 40 or portions thereof. Legal Standard: Code of Civil Procedure section 425.16 states, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16(b)(1).) "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (Navellier v. Sletten (2002) 29 Cal.4th 82, 88.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (Id. at 89.) A defendant has the initial burden of demonstrating that the suit arises from conduct described in Code Civ. Proc. § 425.16, and that is it not subject to the exceptions contained in Code Civ. Proc. § 425.17. (Brill Media Co., LLC v. TCW Group, Inc. (2005) 132 Cal.App.4th 324, 330.) Defendant need only make a prima facie showing of protected activity under Section 425.16, and the burden then shifts to plaintiff to establish, as a matter of law, that no such protection exists. (Code Civ. Proc. § 425.16(b), and Governor Gray Davis Committee v. American Taxpayers Alliance (2002) 102 Cal.App.4th 449, 458 to 459.) Once the burden shifts, the plaintiff must thus demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment. (Premier Med. Mgt. Systems, Inc. v. California Ins. Guar. Ass'n (2006) 136 Cal.App.4th 464, 472.)

		Procedural History: On 11/20/25, the Court partially granted moving Defendants' prior anti-SLAPP motion regarding the FAC as to paragraphs 35, 36, 41, 53, and 62, which alleged Defendants' wrongful filing and/or service of legal documents in underlying litigation. The Court denied the anti-SLAPP motion as to the following paragraphs, which alleged garden-variety professional negligence rather than protected litigation activity: "25. As AlphaPet's majority member, Homman is not subject to attorney-client privilege concerning the company's internal matters. Nevertheless, Kutak refused to disclose any information regarding its engagement with AlphaPet or its knowledge derived from that representation. 26. Upon numerous requests, Defendants refused to provide Kutak's records including but not limited to its legal services agreement entered with AlphaPet and invoices issued and paid by AlphaPet. Defendants also refused to disclose Kutak's conflict-of-interest policies or to explain how its concurrent representation of Harold Epps and other interested individuals did not impair its obligations to AlphaPet." Because the prior anti-SLAPP motion did not completely dispose of any of Plaintiff's causes of action, the Court also ruled on Defendants' demurrer, sustaining with leave to amend as to the first cause of action, overruling as to the second cause of action, and sustaining without leave as to the third cause of action. Plaintiff filed its SAC on 12/9/25. Merits: Defendants contend Plaintiff improperly made over 300 changes in the SAC, including re-framing the previously stricken paragraphs 35, 36, 41, 53, and 62 in violation of the anti-SLAPP statute. Although a Plaintiff generally is not permitted leave to amend after their complaint has been determined a SLAPP, here the SLAPP ruling did not completely dispose of any cause of action and Plaintiff was permitted leave to amend its first cause of action for professional negligence. However, in granting leave to amend, the Court did not intend to allow Plaintiff to re-plead allegations related to Defendants' protected litigation conduct. "[S]ection 425.16 provides no mechanism for granting anti-SLAPP motions with leave to amend. [Citations] Trial courts should either grant or deny such motions in toto, i.e., without leave to amend, prior to ruling on any pending demurrers. A proper ruling on the anti-SLAPP motion

		would, in most cases, obviate the need to rule on the demurrer at all or, at the very least, in its entirety." (Martin v. Inland Empire Utilities Agency (2011) 198 Cal.App.4th 611, 629.) "Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment." (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425.) The motion is denied to the extent the SAC seeks to re-allege claims that the Court found were not subject to the SLAPP statute, i.e. paragraphs 25 and 26 which alleged the law firm wrongfully represented certain of the LLC's members and refused to provide information related to its representation of the LLC to the other member. This includes the SAC's paragraphs 15, 18, and portions of paragraph 40 (except paragraph 40's references to making false statements to "the court"). The motion is also denied as to the "incorporating" allegations at paragraphs 28 and 32. However, to the extent discovery reveals any of these allegations are based on protected conduct, they may be subject to dismissal at a later stage. The motion is granted as to Plaintiff's attempt to re-allege claims which were previously stricken in the 11/20/25 order, i.e. claims which arise from Defendants' filing and service of legal documents and/or asserting certain positions in active litigation. This includes the remaining allegations at paragraphs 19, 20, 21, 23, 26, and 27, which are attempts at "sham pleading" to avoid the effect of the anti-SLAPP ruling. It also includes the allegation in paragraph 40 that Defendants made "false representations…to…the court.
4	***24-01376047*** ***Curran vs. Rivian Automotive, Inc.***	**Motion to Strike or Tax Costs** Plaintiff Elizabeth Curran's Motion to Tax Costs is GRANTED. Defendants' memorandum of costs seeks only discretionary costs. The parties do not dispute the FEHA and non-FEHA claims are inextricably intertwined, thus, Government Code section 12965(c)(6) applies to all costs instead of Code of Civil Procedure section 1032. For a defendant to recover costs under Government Code section 12965(c)(6) the court must find "the action was objectively without foundation when brought, or the plaintiff continued to litigate after it clearly became so." (*Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 115.) "The clerk has no authority to exercise discretion in awarding costs, let alone to make the frivolousness finding required by Government Code section 12965; the cost memorandum was therefore an ineffective means of seeking costs in this FEHA case. This same conclusion was drawn in *Anthony v. City of Los Angeles* (2008) 166 Cal.App.4th 1011, 1015-1016. In *Anthony*, the court concluded the appellant was not required to file a timely cost memorandum to preserve its right to seek expert costs

		that were not recoverable as a matter of right under Code of Civil Procedure section 1032. As the court pointed out, the cost memorandum applies only to 'cost items to which a party is entitled "as a matter of right …." ' " (*Neeble-Diamond v. Hotel California By the Sea, LLC* (2024) 99 Cal.App.5th 551, 557-558.) Here, all costs are discretionary and dependent on the Court finding frivolousness. Thus, all costs cannot be claimed in a memorandum of costs and must be claimed through a motion. Therefore, Defendants' memorandum of costs is taxed in its entirety because the clerk lacks authority to award any costs.
5	***23-01330456*** ***Hayes vs. Dennis Horton Construction Worker's Tax Service***	**Motion to Compel Answers to Form Interrogatories** Judgment Creditor Jacqueline Martinez's Motion to Compel Responses to Judgment Debtor Interrogatories, Set One, is GRANTED. **Legal standard** A judgment creditor may propound written interrogatories to the judgment debtor in the manner provided by Code of Civil Procedure section 2030.030. (Code Civ. Proc., §§ 708.010, 708.020.) The interrogatories may be enforced in the same manner as interrogatories in a civil action. (Code Civ. Proc., § 708.020, subd. (c).) Code of Civil Procedure section 2030.290, provides, in part: "If a party to whom interrogatories are directed fails to serve a timely response, . . . the party propounding the interrogatories may move for an order compelling response to the interrogatories." The failure to serve a timely response also waives any objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) Section 2030.290, subdivision (c) further provides the court "shall" impose a monetary sanction against any party "who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." On 12/12/25, Judgment Creditor served Judgment Debtor Interrogatories, Set One, on Judgment Debtor. (Cohen Decl., ¶ 9, Ex. G.) After not having received timely responses, Judgment Creditor's counsel followed up with Judgment Debtor's counsel on 1/14/26 and 1/15/26 but did not receive a response. (Cohen Decl., ¶¶ 11, 13, Exs. H, I.) Counsel followed up again on 1/16/26 and Judgment Debtor's counsel stated he would provide the responses "next week." (Cohen Decl., ¶¶ 14, 15, Ex. J.) After not having received responses, Judgment Creditor's counsel followed up on 1/19/26 and 1/20/26 and on 1/20/26 Judgment Debtor's counsel stated he would provide responses "in the next 48 hours or sooner." (Cohen Decl., ¶¶ 16, 17, Exs. K, L.) No responses were provided. (Cohen Decl., ¶ 17.)

		Accordingly, the Court GRANTS Judgment Creditor Jacqueline Martinez's Motion to Compel Responses to Judgment Debtor Interrogatories, Set One. Judgment Debtor shall serve Code-compliant responses, without objections, within 30 days of this order. (Code Civ. Proc., § 2030.290, subds. (a), (b).) Judgment Creditor's request for sanctions against Plaintiff is granted in the reduced amount of $1,375.00, payable within 30 days. (Code Civ. Proc., § 2030.290, subd. (c).)
6	***24-01445819*** ***Hovarter vs. Borksi***	**1) Motion to Compel Production** **2) Motion to Compel Production** **MOTION NO. 1 – MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE AND PRODUCTION OF DOCUMENTS, AND FOR MONETARY SANCTIONS** Plaintiff Trevor Hovarter's Motion Compel Responses to Requests for Production, Set One (RFP), and Production of Documents, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to _______/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs served on 6/9/26 at least nine (9) court days before the continued hearing. No further briefing will be permitted. **MOTION NO. 2 – MOTION TO COMPEL COMPLIANCE WITH RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS** Plaintiff Trevor Hovarter's Motion Compel Compliance with Responses to Requests for Production of Documents, Set One, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to _______/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs

		served on 6/9/26 at least nine (9) court days before the continued hearing. No further briefing will be permitted.
7	***25-01524757*** ***Iserhien vs. Irvine Holding Company LLC***	**Motion for Order to Stay Proceedings** Defendant The Irvine Company LLC's motion to compel plaintiff Darya N. Iserhien to submit her claims to binding arbitration, and to stay the action pending arbitration is GRANTED. Defendants move to compel arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) <u>Federal Arbitration Act ("FAA")</u>: The FAA "applies where there is 'a contract evidencing a transaction involving commerce.'" (*Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) Here, the agreement to arbitrate expressly states, "The Lease and this arbitration and class action waiver Addendum shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections l-16, notwithstanding any other choice of law provision." (Matosic Decl., ¶ 5, Ex. A.) Defendant has also shown it engages in interstate commerce. Specifically, Defendant leases apartments to out-of-state residents and its marketing efforts include nationwide internet advertising through social media websites and internet search engines. (Matosic Decl., ¶¶ 3, 4.) Therefore, the FAA applies. A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms." (*Chiron Corp. v. Ortho Diagnostic Sys. Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (*Pinnacle*).) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Ibid.*) <u>Existence of a valid agreement to arbitrate</u>: Plaintiff entered into a lease agreement on September 12, 2022. The lease agreement includes an Addendum for Arbitration of Disputes and Class Action Waiver which provides: "Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this

provision to arbitrate ('Claim' or 'Claims') shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator."

(Matosic Decl., ¶ 5, Ex. A.) Plaintiff does not dispute signing the Agreement. Therefore, Defendant has sufficiently shown the existence of an agreement to arbitrate.

Delegation clause:
The agreement to arbitrate contains a delegation clause which states: "The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable." (Matosic Decl., ¶ 5, Ex. A.)

" 'Although threshold questions of arbitrability are ordinarily for courts to decide in the first instance under the FAA [citation], the "[p]arties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement." ' [Citation.] The examination of who has the primary power to determine arbitrability is conducted, at least initially, through the prism of state law. [Citation.] [¶] 'There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.' [Citation.] The 'clear and unmistakable' test reflects a '*heightened* standard of proof' that reverses the typical presumption in favor of the arbitration of disputes. [Citation.]" (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891–892.)

Here, the delegation clause is clear and unmistakable. Although Plaintiff does not contend the delegation clause is revocable under state contract defenses, Plaintiff argues the arbitration provisions are unenforceable as contrary to public policy. Specifically, Plaintiff argues that under Civil Code section 1953, subdivision (a)(4), any provision in a residential lease "by which the lessee agrees to modify or waive" her "procedural rights in litigation in any action involving his rights and obligations as a tenant" shall be "void as contrary to public policy." (Civ. Code, § 1953, subd. (a)(4).)

However, the FAA preempts section 1953. "[T]he FAA preempts a state rule that discriminates against arbitration by discouraging or prohibiting the formation of an arbitration agreement." (*Chamber of Commerce of the United States of America v. Bonta* (9th Cir. 2023) 62 F.4th 473, 483, 486 (*Chamber of Commerce*).) "[A] state rule discriminates against arbitration even if it does not expressly refer to arbitration, but instead targets its defining characteristics." (*Id.*, at p. 486.) This includes "a rule that prohibits an agreement ... that waives the right to a jury trial...." (*Id.* at p. 483.) Further, a federal court has held that "FAA preemption applies, overriding California state arbitration laws, including California Civil Code section 1953," in a residential-lease dispute. (*Brooks v. Greystar

		Real Estate Partners, LLC (S.D. Cal., Mar. 31, 2025, No. 23CV1729-LL-VET) 2025 WL 958598, at *2.) Therefore, the delegation clause is enforceable and arbitrability of Plaintiff's claims is a question for the arbitrator. <u>Non-Signatory Status of other parties</u>: Plaintiff contends arbitration should not be compelled because her daughter who is a minor has also filed a separate complaint against Defendant for her personal injuries and is not bound by the arbitration agreement. Plaintiff intends to file a motion to consolidate both cases. The daughter's separate lawsuit is not before the court and is not a basis to deny arbitration. The motion is GRANTED, and the action is stayed, pending the completion of arbitration. Defendant to give notice.
9	***23-01317622*** ***Miller vs. Anaheim Marriott***	**Motion for Summary Judgment and/or Adjudication** Defendants Marriott Hotel Services, LLC and Marriott International, Inc.'s Motion for Summary Judgment is DENIED. Plaintiff's objections nos. 2, 6, and 9 to Exhibits A, B, and D are granted. "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Evid. Code, § 1400.) Defendant submits Exhibits A and D through John Kalinski's declaration. Kalinski only avers to being the Defendant's area general manager and the Exhibits A and D are true and correct copies of the documents. Kalinski fails to provide any context which the Court may use to determine Kalinski would know the documents are what he claims they are. Similarly, Exhibit B is submitted through Roger Bracken's declaration. Bracken's declaration also provides insufficient information to authenticate the document. Thus, Plaintiff's objections are sustained. The Court declines to rule on Plaintiff's remaining objections as they are not dispositive to the Motion. "A valid release precludes liability for risks of injury within the scope of the release." (A*nderson v. Fitness International, LLC* (2016) 4 Cal.App.5th 867, 877). Defendants rely on the waiver contained in the Waiver and Appearance Agreement which was attached as Exhibit B. (UMF 4-8.) However, Exhibit B is not admissible, thus, Defendants have failed to show the existence of a valid release. Therefore, Defendants' argument the waiver precludes liability is unsupported by admissible evidence. "[A]s a general rule, a landowner does not have a duty to remedy or warn of an obviously dangerous condition on his or her property."

		(*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 146.) Similarly, Defendants only evidence in support of this claim is the photograph attached as Exhibit D which is not admissible. (UMF 13.) Thus, Defendants have failed to submit any admissible evidence to show the condition was open or obvious. Accordingly, Defendants have failed to meet their burden of proof of showing a complete defense to Plaintiff's cause of action and their Motion is denied.
11	***23-01302857*** ***Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC***	**Motion for Summary Judgment and/or Adjudication** Plaintiff Providence Capital Funding, Inc.'s Motion for Summary Judgment, or, in the Alternative, Motion for Summary Adjudication is GRANTED. Plaintiff Providence Capital Funding, Inc. ("Plaintiff") moves for summary judgment in its favor against defendants Team MMJ Trucking LLC ("MMJ"), Mike Springer ("M. Springer") and Tonya Springer ("T. Springer") (collectively, "Defendants") on the causes of action against them that are alleged in Plaintiff's complaint. Alternatively, Plaintiff moves for summary adjudication that MMJ has no defense to the first cause of action for breach of contract; Defendants have no defense to the second cause of action for recovery of personal property; defendants M. Springer and T. Springer have no defense to the third cause of action for breach of guaranty; and each of Defendants' 16 affirmative defenses are without merit as a matter of law. The Court declines to consider Defendants' untimely opposition, which was served on 7/6/26 and filed on 7/7/26. Defendants' opposition was due on 6/26/26. (See Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Courts have discretion "to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission." (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765; *Kapitanski v. Von's Grocery Co., Inc.* (1983) 146 Cal.App.3d 29, 32-33 [court can summarily reject late-filed papers under local rules, but if it considers them at all, it must apply Code Civ. Proc., § 473 standards, and it is an abuse of discretion to refuse relief if "excusable neglect" shown]; CRC, rule 3.1300(d).) Defendants have not established that their untimely service and filing of their opposition was due to excusable neglect. The Court declines to rule on Plaintiff's objections (ROA 182, 183) as immaterial to the Court's ruling but the objections are preserved for purposes of appeal. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 526 ["the trial court's failure to rule expressly on any of Google's evidentiary objections did not waive them on appeal"]; see Code Civ. Proc., § 437c, subd. (q).) **Legal Standard**

		"A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Where a plaintiff seeks summary judgment or summary adjudication, the plaintiff meets its initial burden by "prov[ing] each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff's initial burden "[does] not include disproving any affirmative defenses asserted by defendants." (*Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 564; *Montrose Chemical Corporation v. Superior Court* (1993) 6 Cal.4th 287, 301, fn 4.) If plaintiff meets this initial burden, "the burden then shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(1).) The defendant may not rely on allegations or denials of its own pleadings. (Ibid.) "An issue of fact can only be created by a conflict of evidence. It is not created by speculation, conjecture, imagination or guess work." (*Yuzon v. Collins* (2004) 116 Cal.App.4th 149, 166 [cleaned up].) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar, supra,* 25 Cal.4th at p. 843.) **First and Third Causes of Action - Breach of Contract and Breach of Guaranty** "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance (3) the defendant's breach, and (4) the resulting dan1age to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) "A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty." (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.) Here, the undisputed material facts establish each element of each cause of action. <u>The existence of a valid contract and valid guaranty</u>: On or about 8/7/20, Plaintiff, as lessor, and MMJ, as lessee, entered into written Lease Agreement No. 20200731/904730 ("Lease") whereby MMJ agreed to lease from Providence a 2013 Cascadia Freightliner tractor ("Vehicle") for an initial term of 24 months ("Initial Term"). (UMF 1, 3-5.) At least 120 days before the end of the Initial Term, MMJ could elect to purchase the Vehicle or return it by providing Plaintiff with written

notice of its election. Otherwise, the Lease would automatically renew for another 12 months, and thereafter for successive 6 month terms until MMJ returned the Vehicle to Plaintiff. (UMF 6-7.)

Concurrently with MMJ's execution of the Lease, M. Springer and T. Springer executed written guaranty agreements ("Guaranties") whereby they unconditionally guaranteed all obligations owed by MMJ under the Lease. (UMF 8.) In reliance on the Guaranties, Plaintiff extended credit to Defendants. (UMF 9.)

Subsequent to the funding of the Lease, Plaintiff assigned 22 of the Initial Term payments under the Lease to Financial Pacific Leasing ("FPL"), retaining the rights to the first and last payments. (UMF 10.) MMJ made all payments due during the Initial Term of the Lease, including the 22 payments assigned to FLP. (UMF 12-14.) Following payment of the Initial Term payments assigned to FPL, all right, title and interest to the Lease and the Vehicle was reassigned back to Plaintiff. (UMF 14.) Following the reassignment, Plaintiff has held all right, title and interest in the Lease and the Vehicle. (UMF 14.)

<u>Plaintiff's performance</u>: Plaintiff and FPL performed as required under the Lease by paying the vendor and by allowing MMJ to have possession and use of the Vehicle. (UMF 2, 12,14.)

<u>Defendants' breach</u>: At the end of the Initial Term, MMJ did not return the Vehicle to Plaintiff and never provided notice of its election to return or repurchase the Vehicle. Thus, the Lease automatically renewed for an additional 12 month term, and thereafter for successive 6 month terms. (UMF 15.) Beginning November 2022, MMJ stopped making the monthly payments owed to Plaintiff under the Lease. (UMF 16-17.) MMJ continues to possess the Vehicle. (UMF 18.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amount and return of the Vehicle. (UMF 19.) However, they failed and refused to do so. (UMF 20.)

<u>Plaintiff's resulting damages</u>: As of 3/15/26, Plaintiff is owed $67,914.61 from MMJ under the Lease and from M. Springer and T. Springer under the Guaranties. (UMF 20.)

Accordingly, Plaintiff has met its initial burden.

Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact.

Second Cause of Action - Recovery of Personal Property

To establish claim for recovery of personal property, the plaintiff must prove the right to immediate and exclusive possession of the property at the time of the commencement of the action and the defendant has unlawfully refused to return the property to the plaintiff. (*Fredericks v. Tracy* (1893) 98 Cal. 658, 660; *Normart v. Safer* (1924) 67 Cal.App. 507, 519.)

		Here, the undisputed facts establish each of these elements. The Lease provides that Plaintiff is the owner of and has title to the Vehicle, and if MMJ failed to make any payment when due, Plaintiff could take possession of the Vehicle. (UMF 3-4.) Plaintiff assigned 22 of the Initial Term payments FPL. (UMF 10.) Following MMJ's payment of the Initial Term payments, FPL reassigned all right, title and interest to the Lease and the Vehicle back to Plaintiff. (UMF 12- 14.) Beginning November 2022, MMJ defaulted on the Lease when it stopped making the monthly payments. (UMF 16-17.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amounts and return of the Vehicle; however, they failed and refused to do so. (UMF 19-20.) Plaintiff commenced this action on 1/18/23. These facts establish Plaintiff had the right to immediate and exclusive possession to the Vehicle at the time it commenced this action and Defendants refused Plaintiff's pre-litigation demand to return the Vehicle. Accordingly, Plaintiff has met its initial burden. Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact. Plaintiff's motion for summary judgment is granted.
13	***25-01480023*** ***Rodriguez vs. Richardson***	**Motion to Appear Pro Hac Vice** The Application of Matthew Kleifield to Appear Pro Hac Vice for defendants Jamee Paige Richardson and Benjamin Richardson is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.